



CHAPTER xxxi

An Act to provide for the cesser of the functions of the Commissioners of the River Wear Watch and the dissolution of those Commissioners, to make provisions consequential thereon; and for other purposes.

[19th July, 1961]

WHEREAS by the Act 3 & 4 Vict. c. lxii, intituled “ An Act for establishing and maintaining a proper and effective Watch on the River Wear, in the Port or Haven of Sunderland near the Sea, in the County of Durham”, (hereinafter referred to as “the Act of 1840”) the Commissioners of the River Wear Watch (hereinafter referred to as “the Watch Commissioners”) were incorporated and were empowered to establish, support, and maintain a proper and effective watch or police force on the river Wear in the said port or haven of Sunderland within the limits defined by the Act of 1840 for the protection of shipping and cargoes on board the same, and to provide fire engines, boats and other vessels to protect shipping and cargoes on board the same from fire and other casualties:

And whereas by virtue of section 127 of the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act, 1922, the jurisdiction of the police constables appointed under the Act of 1840 includes the docks as defined in the said Act of 1922:

And whereas under and by virtue of the Act of 1840, as amended by subsequent enactments, certain rates or duties are leviable by the Watch Commissioners in respect of ships or vessels entering

into or passing out of the said port or haven but the revenue derived from such rates or duties is insufficient to meet the expenses of the Watch Commissioners necessary to maintain their undertaking in an efficient state:

And whereas the said river Wear within the said limits and the docks referred to in the said Act of 1922 are situate in the county borough of Sunderland and are therefore entitled to the general services provided and maintained in and for the said county borough by the police and fire authorities respectively thereof:

And whereas accordingly it is expedient that the Watch Commissioners should be dissolved as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the River Wear Watch (Dissolution) Act, 1961.

Interpretation.

2. In this Act, unless the subject or context otherwise requires—

“the Act of 1840” means the Act 3 & 4 Vict. c. lxii, intituled “An Act for establishing and maintaining a proper and effective Watch on the River Wear, in the Port or Haven of Sunderland near the Sea, in the County of Durham”;

“the appointed day” means the first day of October, nineteen hundred and sixty-one;

“the local Acts” means the enactments specified in the schedule to this Act;

“the Watch Commissioners” means the persons holding office immediately before the passing of this Act as Commissioners of the River Wear Watch by virtue of the Act of 1840.

Cesser of
functions
of Watch
Commis-
sioners, etc.

3.—(1) Subject to the provisions of this Act as on and from the appointed day all the powers, privileges, duties and obligations of the Watch Commissioners under the local Acts shall cease and determine and the local Acts shall cease to have effect except such

of the provisions thereof relating to the meetings of the Watch Commissioners and the conduct of business thereat as it may be necessary to keep alive to enable the Watch Commissioners to carry the provisions of this Act into effect.

(2) Notwithstanding the foregoing provisions of this section, the Watch Commissioners or the survivors or survivor of them shall for the purpose of carrying the provisions of this Act into effect continue in office until the passing of such a resolution as is referred to in section 6 (Final dissolution of Watch Commissioners) of this Act.

4. As soon as may be after the passing of this Act the Watch Commissioners shall proceed to take all necessary steps to wind up their affairs and shall sell or otherwise realise all their property, funds and assets of whatsoever kind, and, after payment of the costs and expenses incurred in so doing, shall apply the proceeds as follows:—

Winding up
of affairs of
Watch Com-
missioners.

First in the payment of the costs, charges and expenses of this Act as provided by section 7 (Costs of Act) of this Act;

Secondly in the payment of any moneys owing by the Watch Commissioners and any expenses incurred by the Watch Commissioners in winding up their affairs;

Thirdly in giving effect to any scheme to be prepared and approved pursuant to section 5 (Compensation to employees, etc.) of this Act;

Fourthly for the purposes of such local charity or such other purpose as may be approved by the Minister of Transport.

5. As soon as may be after the passing of this Act the Watch Commissioners shall in accordance with a scheme to be prepared by the Watch Commissioners and approved by the Minister of Transport make provision for the payment of compensation to, or of pensions to or in respect of, all or any of the persons (including all or any of the persons appointed to act as river police under the Act of 1840) in the service of the Watch Commissioners immediately before the passing of this Act.

Compensation
to employees,
etc.

6. Upon the completion of the winding up of the affairs of the Watch Commissioners and upon a resolution being passed by the Watch Commissioners or the survivors or survivor of them to that effect the Watch Commissioners shall go out of office, and the local Acts shall be and are hereby repealed.

Final
dissolution of
Watch Com-
missioners.

7. The costs, charges and expenses preliminary to and of and incidental to the preparation of, and the application for, and the obtaining and passing of, this Act, or otherwise in relation thereto, shall be borne and paid by the Watch Commissioners.

Costs of Act.

SCHEDULE

THE LOCAL ENACTMENTS

The Act 3 & 4 Vict. c. lxii, intituled "An Act for establishing and maintaining a proper and effective Watch on the River Wear, in the Port or Haven of Sunderland near the Sea, in the County of Durham";

Section 127 (Extending the jurisdiction of 3 & 4 Vict. cap. lxii to the Docks) of the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act, 1922;

The River Wear Watch Act, 1923;

Section 256 (As to payments in respect of River Wear Watch) of the Sunderland Corporation Act, 1927;

Section 5 (Increase of charging powers of Watch Commissioners) of the Wear Navigation and Sunderland Dock Act, 1950.

Table of Statutes referred to in this Act

Title or short title	Session and chapter
An Act for establishing and maintaining a proper and effective Watch on the River Wear, in the Port or Haven of Sunderland near the Sea, in the County of Durham	3 & 4 Vict. c. lxii.
Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act, 1922	12 & 13 Geo. 5 c. lxxxiv.
River Wear Watch Act, 1923	13 & 14 Geo. 5 c. xxvi.
Sunderland Corporation Act, 1927 ...	17 & 18 Geo. 5 c. xcvi.
Wear Navigation and Sunderland Dock Act, 1950	14 Geo. 6 c. xi.

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